

STANDARD 1.2.7

NUTRITION, HEALTH AND RELATED CLAIMS

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Part 1 – Purpose and interpretation

To be deleted on 18 January 2016

Editorial Note:

Standard 1.1A.2 is a transitional standard that operates concurrently with this Standard 1.2.7 for a period of three years. During the three-year period Standard 1.1A.2 operates unchanged by this Standard and related variations made by the *Food Standards (Proposal P293 – Nutrition, Health & Related Claims – Consequential) Variation*. A supplier can rely on this Standard or Standard 1.1A.2, but not both. At the end of the three-year period, Standard 1.1A.2 will cease to operate. There is no stock-in-trade period at the end of the three-year period.

1 Purpose

This Standard –

- (a) sets out the claims that can be made on labels or in advertisements about the nutritional content of food (described as nutrition content claims) and the claims that can be made on labels or in advertisements about the relationship between a food or a property of a food, and a health effect (described as health claims); and
- (b) describes the conditions under which such claims can be made, and
- (c) describes the circumstances in which endorsements can be provided on labels or in advertisements.

2 Interpretation

In this Standard –

average energy content is as defined in Standard 1.2.8.

biologically active substance is as defined in Standard 1.2.8.

biomarker means a measurable biological parameter that is predictive of the risk of a serious disease when present at an abnormal level in the human body.

carbohydrate is as defined in Standard 1.2.8.

dietary fibre is as defined in Standard 1.2.8.

endorsement means a nutrition content claim or a health claim that is made with the permission of an endorsing body.

endorsing body is a not-for-profit entity which has a nutrition- or health-related purpose or function that permits a supplier to make an endorsement.

fat is as defined in Standard 1.2.8.

food group means any of the following groups –

- (a) bread (both leavened or unleavened), grains, rice, pasta and noodles;
- (b) fruit, vegetables, herbs, spices and fungi;
- (c) milk and milk products as standardised in Part 2.5 and analogues derived from legumes and cereals mentioned in Column 1 of the Table to clause 3 in Standard 1.3.2;
- (d) meat, fish, eggs, nuts, seeds and dried legumes;
- (e) fats including butter, edible oils and edible oil spreads.

fruit means the edible portion of a plant or constituents of the edible portion that are present in the typical proportion of the whole fruit (with or without the peel or water), but does not include nuts, spices, herbs, fungi, legumes and seeds.

fvnl is as defined in item 4 of Schedule 5 for the purpose of calculating V points.

general level health claim means a health claim that is not a high level health claim.

gluten means the main protein in wheat, rye, oats, barley, triticale and spelt relevant to the medical conditions coeliac disease and dermatitis herpetiformis.

glycaemic index (GI) means a measure of the blood glucose raising ability of the digestible carbohydrates in a given food as determined by a recognised scientific method.

Editorial note:

A method for determining glycaemic index of carbohydrates in foods is described in the Standards Australia Australian Standard Glycemic index of foods (AS 4694 – 2007). In particular, glycaemic index testing is carried out by the determination of glycaemic (blood glucose) responses in human volunteers (in-vivo testing).

The objective of AS 4694 - 2007 is to establish the recognised scientific method as the standard method for the determination of glycaemic index (GI) in foods.

health claim means a claim which states, suggests or implies that a food or a property of food has, or may have, a health effect.

Editorial note:

For the definition of claim, see clause 2 of Standard 1.1.1.

health effect means an effect on the human body, including an effect on one or more of the following –

- (a) a biochemical process or outcome;
- (b) a physiological process or outcome;
- (c) a functional process or outcome;
- (d) growth and development;
- (e) physical performance;
- (f) mental performance;
- (g) a disease, disorder or condition.

high level health claim means a health claim that refers to a serious disease or a biomarker of a serious disease.

meets the NPSC means that the nutrient profiling score of a food described in Column 1 of Schedule 4 is less than the number specified for that food in Column 2 of that Schedule.

monounsaturated fatty acids is as defined in Standard 1.2.8.

NPSC means the nutrient profiling scoring criterion.

nutrient profiling score means the final score calculated pursuant to the method described in Schedule 5.

nutrition content claim means a claim about –

- (a) the presence or absence of –
 - (i) a biologically active substance; or
 - (ii) dietary fibre; or
 - (iii) energy; or
 - (iv) minerals; or
 - (v) potassium; or
 - (vi) protein; or
 - (vii) carbohydrate; or
 - (viii) fat; or
 - (ix) the components of any one of protein, carbohydrate or fat; or
 - (x) salt; or
 - (xi) sodium; or
 - (xii) vitamins; or
- (b) glycaemic index or glycaemic load;